DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

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BOOKING PROCESS

I. PURPOSE:

The purpose of this General Order is to establish procedures for subjects arrested and booked by officers of this Department.

II. DEFINITIONS:

Bisexual – A person who is emotionally, physically, and/or sexually attracted to more than one gender or sexual category.

Cisgender – Describes someone who feels comfortable with the gender identity and gender expression expectations assigned to them based on their physical sex.

Gay – Term used in some cultural settings to represent males who are attracted to males in a romantic or emotional sense. This term can also apply to genders other than men.

Gender – A socially constructed concept classifying behavior as either "masculine" or "feminine" unrelated to one's external genitalia.

Gender Expression – A person's expression of their gender identity including appearance, dress, mannerisms, speech, and social interaction.

Gender Identity – Distinct from sexual orientation and refers to a person's internal, deeply felt sense of being male, female or non-binary.

Gender Non-Conforming – Gender characteristics and/or behaviors that do not conform to those typically associated with a person's biological sex.

Gender "Norms" – The expectations associated with "masculine" or "feminine" conduct based on how society commonly believes males and females should behave.

Homosexual – Sexual, emotional and/or romantic attraction to persons of the same sex.

Intersex – A condition in which a person is born with external genitalia, internal reproductive organs, chromosome patterns and/or an endocrine system that does not fit typical definitions of male or female.

Lesbian – Commonly refers to women typically attracted to other women.

LGBTQ+ – Acronym used to include all those who have diverse sexual orientations and/or gender identities. The acronym includes those who identify as lesbian, gay, bisexual, transgender, queer and/or questioning, and the "+" includes all others within the spectrum.

Non-Binary – Term used by some people who experience their gender identity and or gender expression as falling outside the categories of man and woman. They may self-identify as falling somewhere in between man and woman or, they may define it as wholly different for these terms.

Sex – One's anatomical make-up, including external genitalia, chromosomes and reproductive system.

Sexual Orientation – Romantic and/or physical attraction to members of the same or different sex.

Transgender – A person whose gender identity (internal sense of feeling male or female) differs from their sex at birth.

Transgender Female – A person whose birth sex was male but understands herself to be and desires to live as a female.

Transgender Male – A person whose birth sex was female but understands himself to be and desires to live as a male.

III. BOOKING PROCESS:

Officer safety is of paramount concern. Therefore, all personnel shall adhere to these procedures and shall be alert to any problems or conditions that may compromise the security, safety or the wellbeing of officers and detainees.

Before entering the booking area with an arrestee, officers should ensure the area is clear of other prisoners. Except for exigent circumstances, no two prisoners should occupy the processing area at the same time. If an arrestee is in the processing area, additional prisoners may be securely held in Prisoner Staging or in a vehicle, equipped with a prisoner compartment, in the sallyport. If the sallyport is used, an officer will remain with the vehicle.

A. Supervision

1. During the booking process, prisoners/suspects shall be supervised by a minimum of one (1) commissioned employee.

2. Should the number of prisoners exceed the capacity of the temporary holding cells; officers are to remove the prisoners to the following location(s):

a. Prisoner Staging

b. 1st Floor Interview Room

c. Visitation Room inside the Holding Facility.

d. Officers will ensure that these rooms are:

i. Unoccupied; and

ii. Have been cleared of any weapons or contraband.

iii. The purpose of utilizing these secure rooms is to ensure that there is only one (1) prisoner in the booking area at a time. These rooms are not intended for use over 30 minutes. Arrestees to be held in a temporary holding area will be transferred to another facility.

iv. Visual observation of unattended prisoners will be monitored by a Police Department employee at least every 30 minutes.

e. The Richmond Heights Police Department

f. The Brentwood Police Department

g. St. Louis County Justice Services.

B. Fingerprints

1. Arrestees will be fingerprinted utilizing Livescan, which digitally transmits captured criminal fingerprints and all relative criminal history information to the Missouri State Highway Patrol, Criminal Records Division. If Livescan is not

operational, arrestees will be fingerprinted using a Missouri State Highway Patrol OCN fingerprint card and FBI AFIS card. The cards will be forwarded to the Missouri State Highway Patrol, Criminal Records Division.

2. When an officer of this Agency arrests a subject on an Olivette warrant the warrant will indicate what the person should be charged with and if an OCN exists for the subject's charge. If an OCN is already listed for the charge, the subject should not be fingerprinted.

3. Arrestees will not be fingerprinted if the arrestee is being held only on outstanding wants or warrants from another agency and does not have a charge through Olivette.

C. Photographs

As part of the Automated Booking Process, all arrested persons will be photographed.

D. Local Identification Numbers (L.I.D.)

1. All subjects arrested and booked by/ for this Department will be assigned a LOCAL IDENTIFICATION NUMBER (L.I.D).

2. Before generating a new L.I.D number, booking officers should ensure the arrestee has not previously been assigned a L.I.D.

E. Positive Identification

1. If the identity of the arrested person is uncertain, it is the responsibility of the arresting officer or the booking officer to properly identify the person.

2. This includes using the FastID function of Livescan or forwarding fingerprint cards to AFIS or other agencies for identification and confirmation.

3. Fingerprint cards may be faxed to St. Louis County Identification Unit for immediate response.

F. Wanted Checks

The booking officer shall conduct a computer check or request a computer check by Communications of the arrested person to determine if the subject has any outstanding warrants. Outstanding warrants will be confirmed prior to the subject's release to another agency or from custody.

G. Wanted Cancellation

It is the responsibility of the arresting officer to ensure that wanted teletypes by our Department are canceled. A copy of the cancellation shall be placed in CARE scanned documents under the officer's report number.

H. Arrest Registry

1. Every subject arrested and subsequently booked by this Department will be issued an Arrest (A.R.) Number as part of the Automated Booking Process.

2. The A.R. number is specific to that particular arrest and serves as a means of tracking and recalling specific information in reference to each individual arrest entered.

I. Booking Sheet

1. The arresting/booking officer will utilize the automated booking process to complete all applicable areas of the Arrest Booking Sheet. Information should include:

a. Applicable pedigree information

b. Charge(s) information.

c. Release or bond information.

2. As part of the automated process, suspect information regarding the arrest is entered directly into the REJIS information system

3. Access to detainee records and any attachments is restricted to authorized personnel only. All information, records, and reports that the Department has control over is confidential and shall not be released outside of the Department unless authorized. This includes all computerized information from the REJIS and in-house computer systems. Open public records may be released only in accordance with State Law and Department procedures.

J. Medical Screening

1. As part of the automated booking process, arresting officers will conduct a basic health screening to ascertain the overall health condition of the prisoner. This information should be requested prior to accepting a prisoner from another jurisdiction. Officers will inquire into and list any indications of pre-existing or current medical conditions which will be noted in the "MEDICAL CONDITION" portion of the Booking Sheet:

a. Current health of prisoner

b. Any medications currently taken by the prisoner

c. Any loss of consciousness or mental health issues

d. Any physical deformities, scars, or other physical indicators of trauma

e. Physical limitations

2. During the initial medical screening process, each arrestee will be asked, “Do you identify as transgender”? If the answer is “YES”, the booking officer will document the arrestee’s declared gender identity and gender search preference on the booking sheet. Except in exigent circumstances, officers will honor the arrestee’s preferences.

K. Accessible Medical Care

Prisoners with medical conditions or ailments have the right to medical care.

L. Telephone Calls

1. Prisoners shall be allowed a telephone call if requested only upon completion of the booking process, or within a reasonable amount of time after being brought into the facility.

2. The telephone call shall be logged on the booking sheet log, which will include the date, time of the call, telephone number, person called, relationship to the prisoner, and whether the call was completed.

3. Each prisoner will be allowed a minimum of one successfully completed telephone call.

4. The arresting or booking officer is responsible for ensuring that the parents (or guardians) of all arrestees under 18 years of age are notified that they have been taken into custody and arrested.

M. Prisoner’s Property

1. All property will be taken from the prisoner at the time of booking and properly inventoried before placing the prisoner in a holdover cell. This includes jewelry, shoes laces, belt, etc. The prisoner may retain only basic clothing and footwear.

2. All property will be itemized on the booking sheet. If the prisoner refuses to sign the property section of the booking sheet, the officer will indicate as such by writing "Refused to Sign".

3. All money should be counted by both the prisoner and the booking officer. Cash will be placed in a smaller envelope, sealed and the total written on the small envelope. The prisoner should sign across the seal on this envelope. The small envelope with cash will be put in the regular property bag.

4. The property bag will be stored in the designated secure location.

5. The prisoner's property will be returned upon release. The prisoner will sign the booking sheet verifying the return of all items.

N. Prisoner Status/Location Log

1. The booking officer will update the ECDC Prisoner Log with all pertinent information.

2. The log will also be updated as necessary to indicate new charges, etc., and when the prisoner is released or transferred.

O. Searching of Prisoners

Arrestees will be searched by an officer of the same gender when booked. Except in exigent circumstances, all searches of transgender, intersex or non-binary arrestees will be conducted by an officer in accordance with the arrestee's documented search preference. Officers will not search or physically examine an arrestee for the sole purpose of determining an arrestee's biological sex.

This Department recognizes that the use of strip searches and body cavity searches may, under certain conditions, be necessary to protect the safety of officers, civilians and other prisoners; to detect and secure evidence of criminal activity; and to safeguard the security, safety and related interests of this Agency's prisoner holding facilities. Recognizing the intrusiveness of these searches on individual privacy, the policy of this Department is that such searches shall be conducted only with proper authority and justification; with due recognition and deference for the human dignity of those being searched; and in accordance with the procedural guidelines for conducting such searches as set forth in this policy.

1. Pursuant to RSMo. 544.193, the following definitions shall apply:

a. "Body cavity search" means the inspection of a person's anus or genitalia, including but not limited to inspections conducted visually, manually or by means of any physical instrument.

b. "Strip search" means the removal or rearrangement of some or all of the clothing of a person so as to permit an inspection of the genitals, buttocks, anus, breasts or undergarments of such person, including but not limited to

inspections conducted visually, manually or by means of any physical instrument.

2. Pursuant to RSMo. 544.193, the following procedure shall apply:

a. No person arrested or detained for a traffic offense or an offense which does not constitute a felony may be subject to a strip search or a body cavity search by any law enforcement officer or employee unless there is probable cause to believe that such person is concealing a weapon, evidence of the commission of a crime or contraband.

b. Strip searches conducted by law enforcement officers shall be performed by persons of the same gender as the person being searched. Except in exigent circumstances, all strip searches of transgender, intersex or non-binary arrestees will be conducted by an officer in accordance with the arrestee's documented search preference. All body cavity searches shall be conducted by medically trained personnel. All strip searches and body cavity searches shall be conducted on premises where the search cannot be observed by any person other than the persons physically conducting the search, except that nothing herein shall be interpreted to prohibit a readily available person from being present at the request and consent of the person being searched.

c. A body cavity search of any person detained or arrested for a traffic offense or an offense which does not constitute a felony may only be conducted pursuant to a duly executed search warrant, under sanitary conditions and by a physician, registered nurse or practical nurse, licensed to practice in this state.

d. Every law enforcement officer or employee conducting a strip search or body cavity search shall:

(1) Obtain the written permission of the person in command of the law enforcement agency in which the strip search or body cavity search is to be conducted authorizing the strip search or body cavity search; and

(2) Prepare a report regarding the strip search or body cavity search. The report shall include:

(a) The written permission required in subdivision (1) above.

(b) The name of the person searched.

(c) The name of the persons conducting the search.

(d) The time, date, and place of the search. A copy of the report shall be furnished to the person who was searched.

3. Strip Searches

a. Individuals arrested for traffic violations and other minor offenses of a nonviolent nature shall not be subject to strip searches unless the arresting officer has articulable, reasonable suspicion to believe that the individual is concealing contraband or weapons. Reasonable suspicion may be based upon, but is not limited to the following:

(1) The nature of the offense charged.

(2) The arrestee's appearance and demeanor.

(3) The circumstances surrounding the arrest.

(4) The arrestee's criminal record, particularly past crimes of violence and narcotics offenses.

(5) The discovery of evidence of a major offense in plain view or in the course of a search incident to the arrest.

(6) Detection of suspicious objects beneath the suspect's clothing during a field search incident to the arrest.

b. Field strip searches of prisoners shall be conducted only in the rarest of circumstances under exigent circumstances where the life of officers or others may be placed at risk, and only in privacy with the explicit approval of a supervisory officer.

c. Where articulable, reasonable suspicion exists to conduct a strip search, the arresting officer shall make a written request for such action to the commanding officer of the law enforcement agency in which the strip search is to be conducted that clearly defines the basis for suspicion. (Use Form #OPD - F1160 *"Prisoner Search"*)

d. When authorized by the supervising authority, strip searches may be conducted only in the following manner:

(1) In conformance with approved hygienic procedures and professional practices.

(2) In an area where the search cannot be observed by any person other than the persons physically conducting the search.

(3) By the fewest number of personnel necessary and only by those of the same sex.

4. Following a strip search, the officer performing the search shall submit the completed Prisoner Search Form to the supervisory authority that details, at a minimum, the following:

a. The written permission required above in subsection 3.

b. Date and place of the search.

c. Identity of the officer conducting the search.

d. Identity of the individual searched.

e. Those present during the search.

f. A detailed description of the nature and extent of the search.

g. Any weapons, evidence or contraband found during the search.

h. A copy of the report shall be furnished to the person who was searched.

5. Body Cavity Searches

a. Should visual examination of a suspect during a strip search and/or other information lead an officer to believe that the suspect is concealing a weapon, evidence or contraband within a body cavity, the following procedures shall be followed:

(1) The suspect shall be kept under constant visual surveillance until a body cavity search is conducted or an alternative course of action taken.

(2) The officer shall consult with his/her immediate supervisor to determine whether probable cause exists to seek a search warrant for a body cavity search. The decision to seek a search warrant shall recognize that a body cavity search is highly invasive of personal privacy; and is reasonable only where the suspected offense is of a serious nature; and/or poses a threat to the safety of officers or others; and/or the security of the Department's prisoner holding operations.

(3) If probable cause exists for a body cavity search, an affidavit for a search warrant shall be prepared that clearly defines the

nature of the alleged offense and the basis for the officer's probable cause.

(4) On the basis of a search warrant, a body cavity search shall be performed only by an authorized agency physician or by other medically trained personnel at the physician's direction.

(5) For safety and security reasons, the search shall be conducted at an authorized medical facility.

(6) Body cavity searches shall be performed with due recognition of privacy and hygienic concerns previously addressed in this policy.

6. Officers shall abide by the above search procedures for felony arrests as well.

7. Juveniles are afforded the same rights and protections in terms of strip and body cavity searches as outlined in Section "O" above.

P. Housing of Prisoners

Prisoners will be housed in cells with other prisoners of the same gender. In order to respect the dignity of all arrestees, transgender, intersex and non-binary arrestees should be housed independently. If this is not possible, transgender, intersex and non-binary arrestees should be transferred to St. Louis County Justice Services.

Q. Shower Facilities

Prisoners will be afforded certain items to accommodate health and hygiene needs.

1. If a prisoner is anticipated to be in the custody of this Department for a period of twenty-four (24) hours or longer, that prisoner may be provided personal hygiene items upon request. These items may include one (1) toothbrush, one (1) toothpaste, and/or one (1) multi-purpose body soap. After use, these items will remain in the prisoner's property locker until the prisoner's release, at which time, they will be disposed.

2. If, when a person is arrested, their clothing or their person is soiled with blood, vomit, feces, urine or other dangerous bodily fluid, they may be permitted to shower. If the on-duty watch commander determines a shower is necessary, the following procedures will take place:

    a. The prisoner will be provided the aforementioned personal hygiene items in addition to: towel, disposable jumpsuit and disposable sandals, if needed.

b. The prisoner will be escorted to the shower where the prisoner will disrobe, inside the shower, behind closed doors.

c. After the prisoner has showered, while behind closed doors, the prisoner shall dress.

d. Disposable towels shall be used after showering and thrown away after use.

e. Any soiled clothing, if not being retained as evidence, will be placed in a red plastic Bio-Hazard bag to remain with the prisoner's property until release

f. At the discretion of the watch commander, a family member or friend may bring the prisoner clean clothing rather than using a disposable jumpsuit and sandals.

g. When feasible, the officer supervising the showering shall be the same gender or gender identity/expression as the prisoner. If the officer supervising the showering prisoner is of the opposite gender or gender identity/expression of the prisoner, at least one (1) additional officer will remain in the holding area until the prisoner is returned to a cell.

3. All prisoner showers and/or distribution of hygiene items will be noted on the prisoner's booking sheet and the ECDC Prisoner Log.

R. Protective Custody Arrests

1. Protective Custody Arrests apply only to intoxicated persons, and then only if all other means of sheltering the person have been exhausted.

2. Indigents should be referred to a social services agency and persons with mental problems should be taken to an appropriate facility designated for this purpose.

3. Persons taken into protective custody may be held for up to a maximum of 12 hours to facilitate sobriety.

4. Normal booking procedures will apply to all persons taken into protective custody.

S. Municipal Court Jail Commitments

When the municipal court sentences an individual to periods of jail confinement, the following procedures will be utilized:

1. The St. Louis County Justice Services (jail) will provide facilities and services when the municipal court assigns periods of jail confinement.

2. Prisoners will be conveyed by an officer of the Olivette Police Department to the St. Louis County Justice Service Intake area where they will be properly registered according to the agency's policies and regulations.

3. The arrestee will be released upon completion of sentence from the St. Louis County Justice Service facilities.

T. Prisoners from Outside Jurisdictions

All prisoners received from outside jurisdictions must be accompanied by an arrest/booking sheet indicating identity, aliases, and physical characteristics.

U. Bond/ Bail

Prisoners shall be provided with every reasonable opportunity to secure bond or bail. If the arrest is based on a warrant, then the bond amount is listed on the warrant. If the bond amount is not listed on the warrant, the arresting officer will contact the Municipal Court for clarification. If the arrest is not based on a warrant, and the arresting officer believes there is cause to hold the prisoner for a bond, a Municipal Court Warrant Application form and a Municipal Court Probable Cause Statement form will be completed and submitted to the Municipal Court and Municipal Prosecutor for consideration.

IV. OFF-SITE BOOKING PROCEDURES

A. Under certain circumstances, it may be feasible to arrest and release a suspect who has committed a minor felony on the scene of the incident rather than transport back to this Command to complete the booking process.

B. At the discretion of the on-duty watch commander, the following procedure will apply to off-site booking:

1. Obtain fingerprint cards, ink pad, Miranda Rights Waiver, Form #OPD – F1034, and Voluntary Statement (Under Arrest), Form #OPD – F1052.

2. Inform the suspect they are under arrest and what crimes they are suspected of committing. The suspect needs to be positively identified by an ID/knowledge of suspect from prior encounter or previous arrest records.

3. Officers will place the suspect either in front of the patrol vehicle camera or in the back area of the patrol vehicle where video and audio are available.

4. If required, Miranda will be read to the suspect. Suspects do not need to sign the form, but they do need to verbally agree they understand and are willing to

talk before questioning. Suspects will be afforded the opportunity to give a written statement.

5. Officers will print the suspect completing all necessary information. The suspect will be instructed to sign the back of the fingerprint card.

6. The suspect will be photographed with a Department camera. Only one front facing photograph is necessary for the booking sheet.

7. Officers can release the suspect on scene or transport to the next agency if applicable.

8. The officer will return to the station and generate a booking sheet for the arrest. The photograph will be uploaded to the booking sheet and the OCN will be used from the fingerprint card. The suspect should be entered as released on the booking sheet (i.e. Released to Authority, RPAW, etc).

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
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